

provision with respect to powers of investment conferred on trustees otherwise than by that Act) shall not apply in relation to the powers of investment of the trustees of the fund.

Interpretation,
short title,
citation and
repeal.

2.—(1) In this Act “narrower-range investment” and “property” have the same meanings as in the Trustee Investments Act, 1961.

(2) This Act may be cited as the House of Commons Members' Fund Act, 1962.

(3) This Act and the House of Commons Members' Fund Acts, 1939 to 1957, may be cited together as the House of Commons Members' Fund Acts, 1939 to 1962.

(4) The enactments specified in the Schedule to this Act are repealed to the extent specified in the third column of that Schedule.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Geo. 6. c. 49.	The House of Commons Members' Fund Act, 1939.	In section three, subsection (1). The Third Schedule.
5 & 6 Eliz. 2. c. 24.	The House of Commons Members' Fund Act, 1957.	Section two.
8 & 9 Eliz. 2. c. 50.	The House of Commons Members' Fund Act, 1960.	The whole Act.

CHAPTER 54

Trinidad and Tobago Independence Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. Provision for fully responsible status of Trinidad and Tobago.
2. Consequential modifications of British Nationality Acts.
3. Consequential modification of other enactments.
4. Interpretation.
5. Short title.

SCHEDULES:

First Schedule—Legislative Powers of Trinidad and Tobago.

Second Schedule—Amendments not affecting the Law of Trinidad and Tobago.

An Act to make provision for, and in connection with, the attainment by Trinidad and Tobago of fully responsible status within the Commonwealth.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the thirty-first day of August, nineteen hundred and sixty-two (in this Act referred to as "the appointed day"), Her Majesty's Government in the United Kingdom shall have no responsibility for the government of Trinidad and Tobago.

Provision for fully responsible status of Trinidad and Tobago.

(2) No Act of the Parliament of the United Kingdom passed on or after the appointed day shall extend, or be deemed to extend, to Trinidad and Tobago as part of the law thereof; and as from that day the provisions of the First Schedule to this Act shall have effect with respect to the legislative powers of Trinidad and Tobago.

2.—(1) As from the appointed day, the British Nationality Acts, 1948 and 1958, shall have effect as if in subsection (3) of section one of the said Act of 1948 (which provides for persons to be British subjects or Commonwealth citizens by virtue of citizenship of certain countries) there were added at the end the words "and Trinidad and Tobago".

Consequential modifications of British Nationality Acts.

(2) Subject to the following provisions of this section, any person who immediately before the appointed day is a citizen of the United Kingdom and Colonies shall on that day cease to be such a citizen if—

(a) under the law of Trinidad and Tobago he becomes on that day a citizen of Trinidad and Tobago, and

(b) he, his father or his father's father was born in Trinidad and Tobago.

(3) Subject to subsection (8) of this section, a person shall not cease to be a citizen of the United Kingdom and Colonies under subsection (2) of this section if he, his father or his father's father—

(a) was born in the United Kingdom or in a colony; or

(b) is or was a person naturalised in the United Kingdom and Colonies; or

(c) was registered as a citizen of the United Kingdom and Colonies; or

(d) became a British subject by reason of the annexation of any territory included in a colony.

(4) A person shall not cease to be a citizen of the United Kingdom and Colonies under subsection (2) of this section if he was born in a protectorate or protected state, or if his father or his father's father was so born and is or at any time was a British subject.

(5) A woman who is the wife of a citizen of the United Kingdom and Colonies shall not cease to be such a citizen under subsection (2) of this section unless her husband does so.

(6) Subsection (2) of section six of the British Nationality Act, 1948 (which provides for the registration as a citizen of the United Kingdom and Colonies of a woman who has been married to such a citizen) shall not apply to a woman by virtue of her marriage to a person who ceases to be such a citizen under subsection (2) of this section, or who would have done so if living on the appointed day.

(7) Subject to subsection (8) of this section, the reference in paragraph (b) of subsection (3) of this section to a person naturalised in the United Kingdom and Colonies shall include a person who would, if living immediately before the commencement of the British Nationality Act, 1948, have become a person naturalised in the United Kingdom and Colonies by virtue of subsection (6) of section thirty-two of that Act (which relates to persons given local naturalisation before that commencement in a colony or protectorate).

(8) Any reference in subsection (3) or subsection (4) of this section to a colony, protectorate or protected state shall, subject to the next following subsection, be construed as a reference to a territory which is a colony, protectorate or protected state on the appointed day; and the said subsection (3) shall not apply to a person by virtue of any certificate of naturalisation granted or registration effected by the governor or government of a territory outside the United Kingdom which is not a colony, protectorate or protected state on that day.

(9) The protectorates of Northern Rhodesia and Nyasaland shall be excepted from the operation of any reference in subsection (4) or subsection (8) of this section to a protectorate.

(10) Part III of the British Nationality Act, 1948 (which contains supplemental provisions) shall have effect for the purposes of subsections (2) to (9) of this section as if those subsections were included in that Act.

Consequential
modification
of other
enactments.

3.—(1) Notwithstanding anything in the Interpretation Act, 1889, the expression "colony" in any Act of the Parliament of the United Kingdom passed on or after the appointed day shall not include Trinidad and Tobago.

(2) As from the appointed day—

- (a) the expression “colony” in the Army Act, 1955, the Air Force Act, 1955, and the Naval Discipline Act, 1957, shall not include Trinidad and Tobago, and
- (b) in the definitions of “Commonwealth force” in subsection (1) of section two hundred and twenty-five and subsection (1) of section two hundred and twenty-three respectively of the said Acts of 1955, and in the definition of “Commonwealth country” in subsection (1) of section one hundred and thirty-five of the said Act of 1957, at the end there shall be added the words “or Trinidad and Tobago”;

and no Order in Council made on or after the appointed day under section one of the Army and Air Force Act, 1961, shall operate to continue either of the said Acts of 1955 in force as part of the law of Trinidad and Tobago.

(3) For the purposes of the making, on or after the appointed day, of Orders in Council under the West Indies Act, 1962, and for the purposes of the making on or after that day of grants under section eight of that Act, Trinidad and Tobago shall be treated as not being a colony within the meaning of that Act.

(4) As from the appointed day, the provisions specified in the Second Schedule to this Act shall have effect subject to the amendments respectively specified in that Schedule, and Her Majesty may by Order in Council, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, make such further adaptations in any Act of the Parliament of the United Kingdom passed before this Act, or in any instrument having effect under any such Act, as appear to Her necessary in consequence of section one of this Act; and any Order in Council made under this subsection may be varied or revoked by a subsequent Order in Council so made, and, though made after the appointed day, may be made so as to have effect from that day.

(5) Subsection (4) of this section shall not extend to Trinidad and Tobago as part of the law thereof.

4.—(1) In this Act, and in any amendment made by this Act Interpretation.
in any other enactment, “Trinidad and Tobago” means the Island of Trinidad, the Island of Tobago and any territories which at the passing of this Act are dependencies of the Colony of Trinidad and Tobago.

(2) References in this Act to any enactment are references to Short title.
that enactment as amended or extended by or under any other enactment.

5. This Act may be cited as the Trinidad and Tobago Independence Act, 1962.

SCHEDULES

FIRST SCHEDULE

LEGISLATIVE POWERS OF TRINIDAD AND TOBAGO

1. The Colonial Laws Validity Act, 1865, shall not apply to any law made on or after the appointed day by the legislature of Trinidad and Tobago.

2. No law and no provision of any law made on or after the appointed day by that legislature shall be void or inoperative on the ground that it is repugnant to the law of England, or to the provisions of any Act of the Parliament of the United Kingdom, including this Act, or to any order, rule or regulation made under any such Act, and, subject to paragraph 6 of this Schedule, the powers of that legislature shall include the power to repeal or amend any such Act, order, rule or regulation in so far as it is part of the law of Trinidad and Tobago.

3. The legislature of Trinidad and Tobago shall have full power to make laws having extra-territorial operation.

4. Without prejudice to the generality of the preceding provisions of this Schedule, sections seven hundred and thirty-five and seven hundred and thirty-six of the Merchant Shipping Act, 1894, shall be construed as if references therein to the legislature of a British possession did not include references to the legislature of Trinidad and Tobago.

5. Without prejudice to the generality of the preceding provisions of this Schedule, section four of the Colonial Courts of Admiralty Act, 1890 (which requires certain laws to be reserved for the signification of Her Majesty's pleasure or to contain a suspending clause), and so much of section seven of that Act as requires the approval of Her Majesty in Council to any rules of court for regulating the practice and procedure of a Colonial Court of Admiralty, shall cease to have effect in Trinidad and Tobago.

6.—(1) Nothing in this Act shall confer on the legislature of Trinidad and Tobago any power to repeal, amend or modify the constitutional provisions otherwise than in such manner as may be provided for in those provisions.

(2) In this paragraph "the constitutional provisions" means the following, that is to say—

(a) this Act;

(b) any Order in Council made before the appointed day (whether before or after the passing of this Act) which made or makes provision in respect of Trinidad and Tobago in pursuance of section five of the West Indies Act, 1962;

(c) any law, or instrument made under a law, of the legislature of Trinidad and Tobago made on or after the appointed day which amends, modifies, re-enacts with or without amendment or modification, or makes different provision in lieu of, any provisions of this Act, of any such Order in Council, or of any such law or instrument previously made.

SECOND SCHEDULE

AMENDMENTS NOT AFFECTING THE LAW OF TRINIDAD
AND TOBAGO*Diplomatic immunities*

1. In section four hundred and sixty-one of the Income Tax Act, 1952 (which relates to exemption from income tax in the case of certain Commonwealth representatives and their staffs)—

(a) in subsection (2), before the words “for any state” there shall be inserted the words “or Trinidad and Tobago”;

(b) in subsection (3), before the words “and ‘Agent-General’” there shall be inserted the words “or Trinidad and Tobago”.

2. In subsection (6) of section one of the Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952, before the word “and” in the last place where it occurs there shall be inserted the words “Trinidad and Tobago”.

3. In subsection (5) of section one of the Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961, before the word “and” in the last place where it occurs there shall be inserted the words “Trinidad and Tobago”.

Financial

4. In subsection (4) of section two of the Import Duties Act, 1958, after the word “Tanganyika” there shall be inserted the words “Trinidad and Tobago”.

Visiting forces

5. In the Visiting Forces (British Commonwealth) Act, 1933, section four (which deals with attachment and mutual powers of command) shall apply in relation to forces raised in Trinidad and Tobago as it applies in relation to forces raised in Dominions within the meaning of the Statute of Westminster, 1931.

6. In the Visiting Forces Act, 1952—

(a) in paragraph (a) of subsection (1) of section one (which specifies the countries to which that Act applies) at the end there shall be added the words “Trinidad and Tobago, or”;

(b) in paragraph (a) of subsection (1) of section ten the expression “colony” shall not include Trinidad and Tobago;

and, until express provision with respect to Trinidad and Tobago is made by an Order in Council under section eight of that Act (which relates to the application to visiting forces of law relating to home forces), any such Order for the time being in force shall be deemed to apply to visiting forces of Trinidad and Tobago.

Ships and aircraft

7. In subsection (2) of section four hundred and twenty-seven of the Merchant Shipping Act, 1894, as substituted by section two of the Merchant Shipping (Safety Convention) Act, 1949, before the words “or in any” there shall be inserted the words “or Trinidad and Tobago”.

8. In the proviso to subsection (2) of section six of the Merchant Shipping Act, 1948, at the end there shall be added the words "or Trinidad and Tobago".

9. In the definition of "excepted ship or aircraft" in paragraph 3 of the Third Schedule to the Emergency Laws (Repeal) Act, 1959, before the words "or in any" there shall be inserted the words "or Trinidad and Tobago".

10. The Ships and Aircraft (Transfer Restriction) Act, 1939, shall not apply to any ship by reason only of its being registered in, or licensed under the law of, Trinidad and Tobago; and the penal provisions of that Act shall not apply to persons in Trinidad and Tobago (but without prejudice to the operation with respect to any ship to which that Act does apply of the provisions thereof relating to the forfeiture of ships).

11. In the Whaling Industry (Regulation) Act, 1934, the expression "British ship to which this Act applies" shall not include a British ship registered in Trinidad and Tobago.

12. In paragraph (b) of subsection (7) of section two of the Civil Aviation (Licensing) Act, 1960, the expression "colony" shall not include Trinidad and Tobago.

Copyright

13. If the Copyright Act, 1911, so far as in force in the law of Trinidad and Tobago is repealed or amended by that law at a time when sub-paragraph (2) of paragraph 39 of the Seventh Schedule to the Copyright Act, 1956 (which applies certain provisions of that Act in relation to countries to which the said Act of 1911 extended) is in force in relation to Trinidad and Tobago, the said sub-paragraph (2) shall thereupon cease to have effect in relation thereto.

Divorce jurisdiction

14. In subsection (2) of section two of the Indian and Colonial Divorce Jurisdiction Act, 1926 (which enables section one of that Act to be extended to certain countries, but not to any of the countries named in the said subsection (2)) at the end there shall be added the words "and Trinidad and Tobago".

Commonwealth Institute

15. In subsection (2) of section eight of the Imperial Institute Act, 1925, as amended by the Commonwealth Institute Act, 1958 (which relates to the power to vary the provisions of the said Act of 1925 if an agreement for the purpose is made with the governments of certain territories which for the time being are contributing towards the expenses of the Commonwealth Institute) at the end there shall be added the words "and Trinidad and Tobago".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Colonial Laws Validity Act, 1865	28 & 29 Vict. c. 63.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Colonial Courts of Admiralty Act, 1890 ...	53 & 54 Vict. c. 27.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Copyright Act, 1911	1 & 2 Geo. 5. c. 46.
Imperial Institute Act, 1925	15 & 16 Geo. 5. c. xvii.
Indian and Colonial Divorce Jurisdiction Act, 1926.	16 & 17 Geo. 5. c. 40.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Visiting Forces (British Commonwealth) Act, 1933.	23 & 24 Geo. 5. c. 6.
Whaling Industry (Regulation) Act, 1934 ...	24 & 25 Geo. 5. c. 49.
Ships and Aircraft (Transfer Restriction) Act, 1939.	2 & 3 Geo. 6. c. 70.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Merchant Shipping (Safety Convention) Act, 1949.	12, 13 & 14 Geo. 6. c. 43.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.
Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952.	15 & 16 Geo. 6 & 1 Eliz. 2. c. 18.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Import Duties Act, 1958	6 & 7 Eliz. 2. c. 6.
Commonwealth Institute Act, 1958	6 & 7 Eliz. 2. c. 16.
British Nationality Act, 1958	6 & 7 Eliz. 2. c. 45.
Emergency Laws (Repeal) Act, 1959	7 & 8 Eliz. 2. c. 19.
Civil Aviation (Licensing) Act, 1960	8 & 9 Eliz. 2. c. 38.
Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961.	9 & 10 Eliz. 2. c. 11.
Army and Air Force Act, 1961	9 & 10 Eliz. 2. c. 52.
West Indies Act, 1962	10 & 11 Eliz. 2. c. 19.

